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General Knowledge

Indian Polity

STUDY NOTES

State Government- Governor

State Government - Governor

Introduction

- The Governor is the constitutional head of the state as per **Article 153** of the Indian Constitution.
- Appointed by the President of India, the Governor serves a term of five years.
- They carry out ceremonial duties and represent the state in various functions.
- The Governor has the authority to appoint the Chief Minister, ministers, and important officials in the state.
- They have the power to summon, prorogue, and dissolve the state legislature.
- The Governor approves the state budget and recommends financial bills to the legislature.
- In case of no clear majority in the assembly, the Governor can exercise discretion in decision-making.
- The Governor has the authority to recommend the President's Rule under Article 356.
- They also have the power to grant pardons under Article 161.
- The Governor acts as a liaison between the central and state governments.

Powers and Functions of Governor in India

Power and Functions of Governor			
Executive Power	Legislative Power	Financial Power	Judicial Power

Executive Powers

- **Executive Actions:** All executive actions of the state government are carried out in the Governor's name.
- **Authentication of Orders:** The Governor specifies the manner in which orders and other instruments executed in their name must be authenticated.
- **Rules for Business Transaction:** The Governor is responsible for creating rules that streamline the functioning of the state government's business and the allocation of duties among ministers.

- **Appointment of Chief Minister and Ministers:** The Governor appoints the Chief Minister and other ministers, who serve at the Governor's pleasure.
- **Tribal Welfare Minister:** In states like Chhattisgarh, Jharkhand, Madhya Pradesh, and Odisha, a Tribal Welfare Minister must be appointed, though this was exempted for Bihar under the 94th Amendment Act of 2006.
- **Seeking Information:** The Governor can ask the Chief Minister for any information regarding the administration of the state or legislative proposals.
- **Submission of Matters:** The Governor may request the Chief Minister to submit matters that have been decided by a minister but not yet considered by the Council of Ministers.
- **Recommendation for Constitutional Emergency:** The Governor has the authority to suggest to the President the imposition of a constitutional emergency in a state.
- **Chancellor of Universities:** The Governor serves as the Chancellor of state universities and has the power to appoint Vice-Chancellors. States like Tamil Nadu and Kerala have passed bills modifying this provision.

Appointments

- The Governor appoints the Advocate General of the state, determines their remuneration, and appoints the State Election Commissioner, whose tenure and conditions of service are also determined by the Governor.
- However, the SEC can only be removed in a manner similar to that of a High Court judge. The Governor also appoints members to the State Public Service Commission, though they can only be removed by the President.

Legislative power

- The Governor has several legislative functions, such as summoning, proroguing, and dissolving the state legislature.
- They address the state legislature at the beginning of each session.
- The Governor sends messages regarding bills to the legislature.
- In case of vacancies, the Governor appoints presiding officers for legislative sessions.
- The Governor nominates members to the legislative council with special expertise.
- The Governor has the authority to nominate a member of the Anglo-Indian community to the state assembly.
- The Governor decides on the disqualification of members of the state legislature.
- They provide assent, reserve, or return state bills as necessary.
- The Governor reserves bills affecting the High Court.
- They have the power to promulgate and withdraw ordinances.

Financial Powers

- The Governor oversees the presentation of the Annual Financial Statement (state budget) in the state legislature.
- Money bills cannot be introduced in the state legislature without the Governor's prior recommendation.
- The Governor's approval is required for the demand for grants.
- They can make advances from the Contingency Fund of the state.
- The Governor is responsible for establishing a Finance Commission every five years.

Judicial Powers

- The Governor can grant reprieves, pardons, respites, remissions, and commutations for sentences under state laws.
- The President consults the Governor while appointing judges to the concerned High Court.
- The Governor is involved in appointing, posting, and promoting district judges in consultation with the state High Court.
- The Governor consults with the state High Court and State Public Service Commission when making judicial appointments, except for District Judges.
- The Governor's veto, ordinance-making, and pardoning powers are often compared with the President's powers.

Governor's assent to the state bills

- Every bill passed by the state assembly must receive the Governor's assent, as the Governor is an integral part of the state legislature.
- The Constitution of India provides clear provisions for the Governor's approval of various types of state bills.

• Article 200 and Article 201

Article 200

- **Article 200**: This article outlines that when a bill is passed by the state legislature, the Governor may either assent, withhold assent, or reserve the bill for the President's consideration. They may also return the bill for reconsideration with a message.

Article 201

- This article states that when a bill is reserved for the President's consideration, the President may either assent to or withhold assent from the bill. The President may also direct the Governor to return the bill for reconsideration.

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- The comparison of the powers of the Governor and President in relation to the assent of state bills helps in better understanding the legislative process.

Comparison of Powers related to Ordinary and Money Bills of Governor vis-a-vis President

Aspect	President	Governor
Ordinary Bill Options	• Assent to pass the bill and make it a law, • Withhold his assent and the bill then ends • Return for reconsideration (except when re-passed by both the Houses or it's a money bill). Here the President has only a suspensive veto.	• Assent to pass the bill and make it a law, • Withhold his assent and the bill then ends • Return for reconsideration (except when re-passed by both the Houses or it's a money bill). Here the Governor has only a suspensive veto. • Reserve for the President's consideration. In such cases, the President can give his assent, withhold it, or return the bill to the state assembly. • When a bill is returned by the President, the House or Houses have to reconsider it within a time period of six months.
When Bill is Re-passed	• Must assent if the returned bill is passed again without amendments.	• If the bill returned for reconsideration is re-passed with or without amendments by the state legislature, the Governor must give his assent (suspension veto). • If a bill is reserved for the assent of the President, and the bill is again presented before the President, he is not bound to give his assent to the bill. • He may assent or withhold his assent. The Governor's assent becomes unnecessary.

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Money Bill Process	• Can only assent or withhold; cannot return for reconsideration.	• Same as the President; • Also, the Governor can reserve the bill for the President's consideration. • The governor's assent is not required if the President gives his assent. • In such a case the President has two alternatives he can either give his assent or withhold it but can not return the bill.
Action on Reserved Bills	• Decides to assent or withhold; cannot return money bills for reconsideration.	• No further role after reservation; if the President assents, the Governor's assent is not required.

Supreme Court verdict in Punjab Government case on Governor Withholding of State Bills

- Supreme Court Ruling on Withholding Assent: The Supreme Court of India recently clarified that when a Governor chooses to withhold assent to a Bill, they must adhere to the procedure outlined in Article 200 of the Constitution.
- Communication of Reasons: According to Article 200, the Governor is required to communicate their reasons for withholding assent and encourage the legislature to reconsider the Bill.
- Requirement to Return the Bill: The Supreme Court ruled that if a Governor withholds assent to a Bill, they must return the Bill to the state legislature for reconsideration.
- Violation of Constitutional Principles: The withholding of assent by the Governor, without following the process of returning the Bill with reasons for reconsideration, violates the constitutional principles established in Article 200.

• Comparison of Powers related to ordinance-making powers of Governor vis-a-vis President

Ordinance making Powers	President	Governor
When Can Ordinances Be Promulgated	• When neither or only one House of Parliament is in session.	• When the state legislative assembly (unicameral) or neither House (bicameral) is in session.
Conditions for Promulgation	• If he believes immediate action is needed.	• Same as the President.
Scope of Power	• Co-extensive with Parliament's legislative powers.	• Coextensive with the state legislature's powers.
Effect of Ordinance	• Equivalent to an Act of Parliament.	• Equivalent to an Act of the state legislature.
Limitations	• Subject to the same limitations as Parliament's legislative powers.	• Subject to the same limitations as the state legislature's powers.
Withdrawal	• Can withdraw an ordinance at any time.	• Same as the President.
Discretionary Power	• Not a discretionary power; ministers must recommend it.	• Same as the resident; based on the advice of the Chief Minister.
Presentation	• Must be presented to both the Houses of Parliament upon reassembly.	• Must be presented to both the Houses of the state legislature upon reassembly.
Expiry	• Ceases after six weeks from reassembly or if disapproved earlier.	• Ceases after six weeks from reassembly or if disapproved earlier by the Legislative Assembly.

Requirement for Instructions	• No instruction is needed for ordinance-making.	• Requires the President's instructions in certain cases related to bills and provisions previously sanctioned by the President.

- ## Comparison of Pardoning powers of the Governor vis-a-vis of the President

Pardoning Powers	President	Governor
Pardoning Powers related to Central or State laws	• Can pardon, reprieve, respite, remit, suspend, or commute sentences under Central law.	• Can pardon, reprieve, respite, remit, suspend, or commute sentences under State law.
Death Sentence	• Exclusive power to pardon a death sentence.	• Cannot pardon a death sentence; • Can only suspend, remit, or commute it.
Court-Martial Cases	• Can pardon, reprieve, respite, suspend, remit, or commute punishments.	• No such powers in cases of court-martial.

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- The role of the Governor is comprehensive, spanning executive, legislative, financial, and judicial responsibilities. While their powers are extensive, they are limited compared to the President's, particularly in areas like diplomacy and defense.
- The Governor's duties play a crucial role in ensuring the efficient functioning of the state administration, while also preserving a balance between state and central authorities.
- Their important powers, especially in making appointments, overseeing legislative processes, and handling judicial matters, highlight their central role in the governance of the state.